



CHAPTER ix.

An Act to make further and better provision for the execution of the powers and duties of the Guardians of the Standard of Wrought Plate in Sheffield. A.D. 1906

[29th May 1906.]

WHEREAS by an Act passed in the year 1773 intituled "An Act for appointing wardens and assaymasters for assaying wrought plate in the towns of Sheffield and Birmingham" (herein-after referred to as the "Act of 1773") the then Marquis of Rockingham and other persons were incorporated a company of or belonging to the town of Sheffield by the name of the Guardians of the Standard of Wrought Plate in Sheffield (herein-after referred to as "the Company") and were invested with powers for assaying and marking wrought silver plate in accordance with the provisions of the said Act:

And whereas by section 24 of the Act of 1773 it was enacted to the effect that in case the prices sums of money or rewards by the said Act given granted or allowed to the Company for the assaying and marking wrought plate should raise more money than should be sufficient to defray the necessary expenses of the assay office then the overplus money if any should be applied by the Company in prosecuting offenders against the said Act and if such prosecutions should not require the whole of such overplus then the said prices sums of money or rewards should afterwards be lessened in proportion and the Company were required to take so much less for the assaying trying and marking wrought plate for the future as would answer the purposes aforesaid only without bringing any profit to the Company:

And whereas the duties and business of the Company with respect to assaying and marking wrought silver plate under the

A.D. 1906. — Act of 1773 have largely increased and by Part IX. of the Sheffield Corporation Act 1903 (herein-after referred to as "the Act of 1903") the Company have been invested with powers for assaying and marking wrought gold plate within the city of Sheffield:

And whereas it is expedient to sanction and confirm the establishment by the Company of a reserve fund and to make provisions suitable to the change in circumstances which has taken place since the passing of the Act of 1773 with regard to the application of the income of the Company:

And whereas it is expedient in other respects to amend the Act of 1773:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Sheffield Assay Act 1906 and the Act of 1773 (which has been repealed so far as it relates to Birmingham) may be cited as the Sheffield Assay Office Act 1773 and the Act passed in the year 1784 (24 George III. c. 20) for altering and amending the Act of 1773 as far as relates to the town of Sheffield may be cited as the Sheffield Assay Office Act 1784 and is in this Act referred to as "the Act of 1784."

Repeal of section of Act of 1773.

2. The section of the Act of 1773 whereof the marginal note is "Overplus of money arising to be applied in prosecuting offenders" is hereby repealed and the provisions of this Act shall take effect in place thereof.

Reserve fund.

3.--(1) A reserve fund shall be established and maintained by the Company consisting of the existing investments made by the Company as set forth in the schedule to this Act and of such other sums as shall be from time to time carried to and invested as part of the said fund so however that the amount of such fund shall not at any time exceed ten thousand pounds.

(2) If at any time the reserve fund shall be reduced below ten thousand pounds the deficiency shall as soon as practicable be made up by carrying to the reserve fund and investing such

sums out of the income of the Company as shall be requisite for that purpose. A.D. 1906.

(3) The proceeds of realisation of any of the existing investments of the Company and all sums from time to time carried to the reserve fund shall be invested in any stocks shares or securities in which trustees are by law for the time being empowered to invest trust moneys or in the bonds debentures or debenture stock of any company in England which for at least three years before the date of the investment has paid a dividend of not less than three per centum per annum on its ordinary shares or ordinary stock with power for the Company from time to time to realise vary and transpose all or any of such investments.

(4) The interest on the investments of the reserve fund shall be applicable as part of the ordinary income of the Company.

4. The Company may from time to time realise any of the investments forming part of the reserve fund and may apply the proceeds in or towards the acquisition of land not exceeding in quantity two acres the erection extension alteration or improvement of buildings the provision of new plant and to any other purpose which the Company may in their discretion deem a proper object for capital expenditure. Application of reserve fund.

5. After payment of or providing for payment of all ordinary expenses incurred by the Company in the maintenance of buildings plant and equipment (including any expenditure on renewals extensions or improvements which the Company may decide to charge to income) and of all other ordinary expenses incurred by the Company in the execution of their powers and duties under the Acts relating to them (including the prosecution of offenders against such Acts or any other Act for the time being in force with regard to the assaying of gold or silver plate) and after carrying to the reserve fund such sums (if any) as shall be necessary to make it up to ten thousand pounds the income of the Company may be applied to all or any of the following purposes (namely):— Application of income.

To the payment of gratuities or pensions to aged or invalid officers or servants of the Company on retirement with power to form and maintain if thought fit a superannuation or pension fund in connexion therewith and of donations or subscriptions to any institution for the benefit of such officers or servants:

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To insurance against liability to pay compensation for accidents under any Act relating to the liability of employers or the compensation of workmen for the time being in force with power for the Company if they see fit to form and maintain a special insurance fund for the purpose:

To forming a collection of books prints or objects of art or manufacture relating to the gold and silver plate industry:

To the promotion and advancement of technical or secondary or higher education in or near the city of Sheffield especially such as may be advantageous to the gold and silver plate industry of the district:

To the payment of donations or subscriptions to any institution or charity connected or identified with the gold or silver plate industry.

Restriction
on increase
of fees.

6. After the passing of this Act the respective amounts of the prices sums or rewards authorised to be taken by the Company under the Act of 1773 the Act of 1784 and the Act of 1903 shall not exceed the respective amounts which immediately before the passing of this Act were in fact taken and received by the Company unless and until the reserve fund shall have been reduced for a period of not less than six months to or below the amount of ten thousand pounds and in that case such increased prices sums or rewards may be taken as the Company see fit until the reserve fund is restored to the amount of ten thousand pounds but so that the respective amounts authorised to be taken under the Act of 1773 the Act of 1784 and the Act of 1903 be not thereby exceeded.

Meetings of
Company.

7. Notwithstanding anything in the Act of 1773 the annual general meeting of the Company may be held at any time in the month of July and the powers of the Company to make byelaws rules and orders is hereby declared to extend to the making of byelaws rules and orders for the holding of quarterly and of special meetings and for regulating the procedure at meetings including the fixing of a quorum and for the appointment and duties of a chairman and committees of the Company or of the meetings of the Company and for the service of notices on members of the Company with respect to meetings and the business thereat and other matters.

Amendment
and repeal of
byelaws.

8. Any byelaw rule or order for the time being in force may be amended or repealed by a two-thirds majority of those present and voting at any meeting of the Company provided that not less

than fourteen days' notice of the proposed amendment or repeal shall have been sent by the law clerk or other principal officer of the Company to every member of the Company at his usual or last known residence or place of business. A.D. 1906.

9. Any member of the Company may resign his membership by letter addressed to the chairman (if any) or to the law clerk or other principal officer of the Company. Any member of the Company elected after the passing of this Act being neither disqualified nor having died or resigned shall continue his membership until the meeting of the Company held next after the expiration of five years from the date of his election and shall thereupon cease to be a member but shall if he continue qualified be eligible for re-election. Any vacancy occurring from any cause among the members of the Company shall be filled in the manner prescribed by the Act of 1773 as amended by this Act and may notwithstanding anything in the Act of 1773 be filled at any meeting of the Company.

Resignation
and retire-
ment of
members and
filling of
vacancies.

10. The section of the Act of 1773 whereof the marginal note is "Other persons to be chosen in place of those who shall die and four wardens to be elected" shall be read and have effect as if the word "ten" was therein substituted for the word "nine" and as if the words "four months" were therein substituted for the words "one month" and the provisions of that section for election of a warden in the room of a deceased warden shall apply also in the case of a warden ceasing to hold his office by resignation or otherwise.

Amendment
of section of
Act of 1773.

11. The duties of the wardens of the Company under the Act of 1773 the Act of 1784 and the Act of 1903 may be discharged by any number not being less than two of the wardens for the time being of the Company.

Duties of
wardens may
be discharged
by any two
of their num-
ber.

12. The costs charges and expenses of and incidental to preparing obtaining and passing this Act shall be paid by the Company out of their ordinary income or out of the invested funds of the Company or partly out of such income or partly out of such funds as aforesaid as the Company may in their discretion determine.

Costs of Act.

A.D. 1906.

SCHEDULE referred to in the foregoing Act.

INVESTMENTS.

British Wagon Company Limited 1,000*l.* 4 per cent. Debenture.

North Central Wagon Company Limited 1,000*l.* 4 per cent. Debenture.

London and North Western Railway Company 3,250*l.* 4 per cent. Preference Stock.

Midland Railway Company 5,000*l.* 2½ per. cent. Preference Stock.

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